

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Aliza Klingenstein	Team: Squad #07	CCRB Case #: 202105223	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☒ O.L.	☐ Injury
Incident Date(s) Sunday, 07/04/2021 11:30 PM	Location of Incident: In front of 167 Essex Street	18 Mo. SOL 1/4/2023	Precinct: 07		
Date/Time CV Reported Wed, 09/01/2021 2:25 PM	CV Reported At: NYC prosecutor's office	How CV Reported: E-mail	Date/Time Received at CCRB Wed, 09/01/2021 2:25 PM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Sean Robinson	04836	961183	INT CIS

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Peng Shan	19379	968126	007 PCT
2. POF Christine Vega	05511	968173	007 PCT
3. POM Jordan Grullon	09116	963556	007 PCT
4. POM Gabriel Perezponce	21361	963187	007 PCT
5. SGT William Hughes	03510	952868	007 PCT
6. POM Mark Soto	30177	964785	007 PCT
7. POM Justin Belhouji	10570	964389	007 PCT
8. POM Wandy Lopez	18762	958835	007 PCT
9. SGT Michael Straniere	02385	933391	PBMS
10. POM Zachary Palladino	10746	964694	007 PCT
11. POM Jose Beltran	11878	965662	007 PCT
12. POM Stephen Patti	10817	957939	007 PCT
13. POM Adrian Garcia	17294	969713	007 PCT
14. POM Radoslaw Kosiorek	09960	957747	007 PCT
15. POM Mateusz Wieromiejczyk	20773	963332	007 PCT
16. POF Qian Lovett	19066	969918	007 PCT
17. SGT James Heinz	05540	953958	007 PCT
18. POM Philip Schaefer	20616	964282	007 PCT
19. POM Michael Sisinni	17712	959249	007 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Sean Robinson	Discourtesy: Police Officer Sean Robinson spoke discourteously to an individual.	A . Exonerated
B . POM Sean Robinson	Abuse: Police Officer Sean Robinson threatened an individual with the use of force.	B . Unsubstantiated

Officer(s)	Allegation	Investigator Recommendation
C . POM Sean Robinson	Discourtesy: Police Officer Sean Robinson spoke discourteously to an individual.	C . Substantiated
D . POM Sean Robinson	Off. Language: Police Officer Sean Robinson made remarks to an individual based upon the gender of an individual.	D . Substantiated

Case Summary

On September 01, 2021, § 87(2)(b) the Unit Coordinator of the Police Accountability Unit at the New York County District Attorney's Office, filed this complaint with the CCRB via email after reviewing Body-Worn Camera (BWC) footage related to a criminal case.

On July 04, 2021, at approximately 11:30 p.m. in front of 167 Essex Street in Manhattan, Police Officer Sean Robinson of the Intel Criminal Section approached an unidentified individual standing near the scene of an investigation and instructed her to "Please back the fuck up" (**Allegation A: Discourtesy, exonerated**). The individual told PO Robinson not to touch her and PO Robinson asked if she wanted to "try" him (**Allegation B: Abuse of Authority, unsubstantiated**). The individual walked away from the scene and PO Robinson stated, "Fuck off... You're a dumb bitch" (**Allegation C: Discourtesy, substantiated**) (**Allegation D: Off. Language, substantiated**).

One BWC video was used to analyze the allegations (**Board Review 01**).

Findings and Recommendations

Allegation (A) Discourtesy: Police Officer Sean Robinson spoke discourteously to an individual.

Allegation (B) Abuse of Authority: Police Officer Sean Robinson threatened an individual with the use of force.

Allegation (C) Discourtesy: Police Officer Sean Robinson spoke discourteously to an individual.

Allegation (D) Off. Language: Police Officer Sean Robinson made remarks to an individual based upon the gender of an individual.

The victim in this case remains unidentified and therefore could not provide a statement.

Footage from PO Robinson's BWC captures the duration of this incident (**Board Review 01**). At minute mark 01:25, approximately 30 seconds after PO Robinson arrives on scene, he asks a man dressed as a parking garage employee what happened. The employee states he saw a gun and points to one of the suspects in police custody. At 01:40, PO Robinson asks where the gun is, and the employee states he does not know. At 01:46, PO Robinson asks the employee where he saw the gun before he walks approximately ten feet inside the garage. At 01:53, PO Robinson walks back onto the sidewalk and approaches an individual. The individual stands on the sidewalk outside the garage entrance, approximately six feet from the nearest officer, and holds a cellphone as if recording. PO Robinson tells the individual, "Yo back up, back up, please back the fuck up... I don't know why you keep getting closer." At 02:01, while walking along the sidewalk, the individual states, "We walking past, don't touch me," and PO Robinson states, "Oh, you wanna try me tonight?" The individual continues walking on the sidewalk towards the end of the garage entrance, approximately 40 feet from where PO Robinson first approached her. At 02:10, the individual tells PO Robinson, "You don't know who I am baby," and at 02:12, as he turns away from the individual, PO Robinson states, "Fuck off." At 02:15, while walking away from the individual, PO Robinson states, "You're a dumb, you're a dumb bitch."

PO Robinson testified that at 11:27 p.m. on July 04, 2021, he responded to a call reporting a dispute with a firearm at 167 Essex Street in Manhattan [a parking garage] (**Board Review 02**). When he arrived, PO Robinson approached a man who he believed was the 911 caller to gather more information. It was a stressful situation and locating the firearm was PO Robinson's main concern. The man stated he saw a firearm in the suspect's hands. PO Robinson knew the suspect was in his vicinity, but he did not know how far away he was. While PO Robinson spoke to the 911 caller, he observed a civilian entering the scene, which PO Robinson believed included the parking garage and the sidewalk in front. The individual interfered with the officers' investigation by

entering the scene before it was secure, although she did not do anything else to interfere with the officers' actions. Whenever a civilian interferes with the scene of a crime, PO Robinson informs the person they need to move back. In this instance, PO Robinson used profanity when instructing the individual to back up because he was experiencing high levels of stress, and it was in an attempt to deescalate the situation and secure the safety of the scene.

PO Robinson testified that he asked the individual, "You want to try me tonight?" as an attempt to deescalate the situation. There was no other reason why PO Robinson made this statement. PO Robinson did not know what he meant by "try me," but his statement was not meant to communicate or foreshadow the use of force.

PO Robinson testified that he stated to the individual, "Fuck off... You're a dumb bitch," because he was experiencing high levels of stress and adrenaline, he was frustrated with the situation, and he wanted the individual to leave the scene. There was no other reason why PO Robinson made this statement.

In DCT Case #79627/04, NYPD Disciplinary decisions have consistently concluded that when an officer uses an impolite word during a street encounter where that officer is attempting to maintain control of the situation, the officer's verbal slip does not rise to the level of actionable misconduct (**Board Review 03**).

In NYPD Administrative Guide Procedure 304-06, officers are prohibited from using discourteous or disrespectful remarks regarding another person's gender (**Board Review 04**).

§ 87(2)(g)

It is therefore recommended that **Allegation A** be **exonerated**.

§ 87(2)(g)

It is therefore recommended that **Allegation B** be **unsubstantiated**.

While it is undisputed the incident took place during a high-stress situation, § 87(2)(g)

As BWC shows PO Robinson had turned away from the individual at the time he made this statement, § 87(2)(g)

It is therefore recommended **Allegations C and D** be **substantiated**.

Civilian and Officer CCRB Histories

- The CCRB was unable to search the victim's CCRB history as the individual remains unidentified.
- PO Robinson has been a member of service for five years and has been a subject in one other CCRB complaint involving two allegations, neither of which was substantiated. § 87(2)(g)

Civil and Criminal Histories

- The CCRB was unable to search the victim's criminal conviction history as the individual remains unidentified.
- As of December 06, 2021, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regards this to complaint (**Board Review 06**).

Squad: 7

Investigator:	<u>Inv. Klingenstein</u>	<u>Inv. Aliza Klingenstein</u>	<u>December 10, 2021</u>
	Signature	Print Title & Name	Date

Squad Leader: _____

Signature _____

Manager Vanessa Rosen _____

Print Title & Name _____

December 14, 2021 _____

Date _____

Reviewer: _____

Signature _____ Print Title & Name _____ Date _____